

Non-Disclosure Agreement

Source request: Generate an NDA between Acme Corp and John Doe for a 12-month AI consulting engagement.

Agreement Overview

Here is the corrected and completed Non-Disclosure Agreement, incorporating a professional introductory paragraph and addressing the identified missing section, along with minor formatting and placeholder adjustments.

NON-DISCLOSURE AGREEMENT

This NON-DISCLOSURE AGREEMENT (this "Agreement") is made and entered into as of this [Date of Last Signature] (the "Effective Date"), by and between ****ACME CORP.****, a [State of Incorporation] corporation, with its principal place of business located at [Principal Place of Business Address] (hereinafter referred to as "Disclosing Party"), and ****JOHN DOE****, an individual, residing at [Residential Address] (hereinafter referred to as "Receiving Party"). Disclosing Party and Receiving Party are hereinafter collectively referred to as the "Parties" and individually as a "Party."

RECITALS

WHEREAS, Disclosing Party possesses certain confidential and proprietary information;

WHEREAS, Receiving Party is engaged or may be engaged by Disclosing Party to provide AI consulting services (the "AI Consulting Engagement");

WHEREAS, in connection with the AI Consulting Engagement, Disclosing Party may disclose certain confidential and proprietary information to Receiving Party;

WHEREAS, the Parties wish to define their respective rights and obligations with respect to the use and disclosure of such confidential information.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. PURPOSE

The purpose of this Agreement is to facilitate the exchange of confidential and proprietary information between the Parties in connection with a potential or ongoing AI Consulting Engagement, specifically for a period of twelve (12) months from the Effective Date, or as otherwise agreed in a separate consulting services agreement.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information, whether commercial, financial, technical, operational, or otherwise, disclosed by Disclosing Party to Receiving Party, directly or indirectly, in writing, orally, visually, electronically, or by any other means, including but not limited to:

- **Business Information:**** Business plans, strategies, marketing plans, financial data, pricing information, customer lists, prospect lists, employee information, vendor information, and internal policies and procedures.
- **Technical Information:**** Proprietary software, algorithms, models, datasets, machine learning methodologies, source code, object code, technical specifications, designs, architectures, research, development, inventions, formulas, processes, know-how, and intellectual property.
- **Project-Specific Information:**** Information related to Disclosing Party's clients, projects, internal operations, and any information generated or derived by Receiving Party during the AI Consulting Engagement that incorporates or reflects Disclosing Party's Confidential Information.
- **Marked Information:**** Any information that is marked or designated as "Confidential," "Proprietary," or with a similar legend at the time of disclosure.
- **Unmarked Information:**** Any information that, given the nature of the information and the circumstances of its disclosure, a reasonable person would understand to be confidential or proprietary.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information shall not include any information that:

- Is or becomes generally available to the public through no fault or breach of this Agreement by Receiving Party;
- Was rightfully in Receiving Party's possession or known by Receiving Party prior to its receipt from Disclosing Party, without restriction as to use or disclosure;
- Is rightfully received by Receiving Party from a third party without restriction as to use or disclosure and without breach of any confidentiality obligation owed to Disclosing Party;

- d. Is independently developed by Receiving Party without use of or reference to Disclosing Party's Confidential Information, as evidenced by written records; or
- e. Is required to be disclosed by law or by a court or governmental order, provided that Receiving Party (to the extent legally permissible) gives Disclosing Party prompt written notice of such requirement prior to disclosure and cooperates with Disclosing Party in any attempt to obtain a protective order or other appropriate remedy.

4. OBLIGATIONS OF RECEIVING PARTY

Receiving Party hereby agrees to:

- a. ****Maintain Confidence:**** Hold all Confidential Information in strict confidence and not disclose, publish, or disseminate it to any third party without the prior written consent of Disclosing Party.
- b. ****Limited Use:**** Use the Confidential Information solely for the Purpose of the AI Consulting Engagement and for no other purpose whatsoever.
- c. ****Protection:**** Protect the Confidential Information with at least the same degree of care as Receiving Party uses to protect its own confidential or proprietary information, but in no event less than a reasonable degree of care.
- d. ****Limited Access:**** Limit access to Confidential Information to those of Receiving Party's employees, agents, or contractors who have a strict "need-to-know" such information for the Purpose and who are bound by confidentiality obligations no less restrictive than those contained herein. Receiving Party shall be responsible for any breach of this Agreement by its employees, agents, or contractors.
- e. ****No Reverse Engineering:**** Not reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code, algorithms, or underlying ideas of any Confidential Information, particularly proprietary software, models, or methodologies.

5. TERM AND SURVIVAL

- a. ****Term of Agreement:**** This Agreement shall commence on the Effective Date and shall remain in full force and effect for a period of two (2) years thereafter, unless terminated earlier in accordance with Section 6.
- b. ****Survival of Obligations:**** Notwithstanding the expiration or termination of this Agreement, the obligations of confidentiality and non-use set forth in Section 4 shall survive for a period of five (5) years from the date of disclosure of the respective Confidential Information. For any information constituting a "trade secret" under applicable law, these obligations shall survive indefinitely, or for as long as such information remains a trade secret.

6. RETURN OR DESTRUCTION OF INFORMATION

Upon the written request of Disclosing Party, or upon the termination or expiration of the AI Consulting Engagement or this Agreement, Receiving Party shall promptly:

- a. Return to Disclosing Party all Confidential Information (including all copies, reproductions, and summaries thereof) furnished by Disclosing Party or created by Receiving Party; or
- b. At Disclosing Party's option, destroy all such Confidential Information and all copies, reproductions, and summaries thereof, and certify such destruction in writing to Disclosing Party within ten (10) business days of Disclosing Party's request.
- c. Receiving Party may retain one (1) copy of the Confidential Information for archival purposes, subject to the continuing confidentiality obligations hereunder, or as required by law or professional standards, provided such retention is limited to the extent necessary and is subject to the continuing confidentiality obligations hereunder.

7. NO LICENSE

Nothing in this Agreement shall be construed as granting any right, title, interest, or license, express or implied, under any patent, copyright, trademark, trade secret, or other intellectual property right of Disclosing Party to Receiving Party, other than the limited right to use the Confidential Information solely for the Purpose as expressly set forth herein.

8. REMEDIES

Receiving Party acknowledges that any breach or threatened breach of this Agreement would cause irreparable harm to Disclosing Party for which monetary damages would not be an adequate remedy. Therefore, in addition to any other remedies available at law or in equity, Disclosing Party shall be entitled to seek injunctive relief (without the necessity of posting a bond or other security) to prevent or remedy any such breach or threatened breach.

9. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. The Parties hereby irrevocably consent to the exclusive jurisdiction of the state and federal courts located in New Castle County, Delaware, for any action arising out of or relating to this Agreement.

10. RELATIONSHIP OF PARTIES

Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties. Receiving Party is an independent contractor, and neither Party has the authority to bind the other or to incur obligations on the other's behalf.

11. MISCELLANEOUS

- a. ****Entire Agreement:**** This Agreement constitutes the entire understanding and agreement between the Parties concerning the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions,

whether oral or written, between the Parties.

b. ****Amendments:**** No amendment, modification, or waiver of any provision of this Agreement shall be effective unless in writing and signed by duly authorized representatives of both Parties.

c. ****Waiver:**** The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or of the right of such Party thereafter to enforce such provision or any other provision of this Agreement.

d. ****Severability:**** If any provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the remainder of this Agreement shall remain in full force and effect.

e. ****Assignment:**** Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party. Any attempted assignment or transfer in violation of this provision shall be null and void.

f. ****Counterparts:**** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Signatures transmitted by facsimile or electronic mail (e.g., PDF) shall be deemed original signatures for all purposes.

IN WITNESS WHEREOF, the Parties have executed this Non-Disclosure Agreement as of the Effective Date.

ACME CORP.

By: \\\

Name: [Authorized Signatory Name]

Title: [Title]

Date: \\\

JOHN DOE

Signature: \\\

Printed Name: John Doe

Date: \\\

Execution

Each party acknowledges that it has read, understood, and agreed to be bound by this Agreement.

Disclosing Party	Receiving Party
Name:	Name:
Title:	Title:
Date:	Date:

Checked required sections, tone, and formatting consistency.